

COMMERCIAL LEASE (Cheyenne, WY)

**GBP, LLC
(Landlord)**

AND

**City of Cheyenne
(Tenant)**

Dated: October 1, 2023

Contract # _____

COMMERCIAL LEASE
(6725 Faith Drive, Cheyenne, WY 80029)

This Commercial Lease (the “Lease”) is entered into as of September 7, 2023, by GBP, LLC, a Colorado limited liability company, whose address is 2020 Caribou Drive, Suite 101 Fort Collins, CO 80525 (“Landlord”); and the City of Cheyenne, whose address is 2101 O’Neil Avenue, Municipal Building, Rm 308, Cheyenne, WY 82001 (“Tenant”). In consideration of the mutual promises contained in this Lease and for other valuable consideration, the receipt and sufficiency of which are acknowledged, landlord leases the Leased Premises described below to Tenant on the terms and conditions contained in this Lease.

1. Definitions. In this Lease, capitalized words or phrases defined below shall have the meanings indicated:

1.1 Property. “Property” means the commercial office/warehouse (collectively referred to as the “Building”), together with all real and personal property located at 6725 Faith Drive, Cheyenne, Wyoming 80029, including all improvements thereon (including the Building and Common Area) and is legally described as follows:

POINTE PLAZA: LOT 1, BLOCK 3, CITY OF CHEYENNE, COUNTY OF LARAMIE, STATE OF WYOMING

1.2 Leased Premises. “Leased Premises” means the entire Property.

1.3 Lease Term. “Lease Term” means from October 1, 2023 until September 30, 2024.

1.4 Lease Year. “Lease Year” shall mean the twelve-month period beginning on the Commencement Date. If the Commencement Date is any day other than the first day of the month, then the first Lease Year shall include the partial month in which the Monthly Base Rent commences and the next consecutive twelve months.

2. Term/Option to Extend.

2.1 The term of this Lease, and the Tenant’s obligation to pay rent under this Lease, shall commence at 12:01 a.m. on October 1, 2023 (the “Commencement Date”). Tenant shall receive possession of the Leased Premises on the Commencement Date. Unless sooner terminated as provided in this Lease, the term shall end at 12:00 Noon on September 30, 2024 (the “Initial Termination Date”).

2.2 Tenant shall have the option to terminate the Lease at any point during the lease term by providing Landlord written notice of their intent to terminate the Lease with no less than ninety (90) days’ written notice to Landlord (“Termination Option”).

3. Rent. Tenant shall pay the following rent for the Leased Premises:

3.1 Base Rent. Tenant shall pay the following Base Rent to Landlord, without notice and without deduction or setoff, at the address of Landlord as set forth in this Lease in advance on the first day of each month during the Lease Term. If appropriate, the Base Rent for the first month of the Lease Term, shall be prorated for said partial month.

Period	Monthly Base Rent
October 1, 2023-September 30, 202	\$13,500.00

4. Security Deposit. The Parties both acknowledge that the Tenant paid to Landlord upon signing of an earlier Lease twenty-seven thousand dollars (\$27,000.00) as security for Tenant's payment of rent and performance of the other terms and conditions of this Lease and a prior lease. Landlord may deduct from such amount for the reasonable cost of repairs to the Leased Premises for which Tenant is responsible if Tenant does not undertake or pay for such repairs as permitted herein (ordinary wear and tear excepted), for any rent delinquent under the terms hereof, and for any sum advanced by Landlord to cure any default of Tenant hereunder. If deductions occur, Landlord must notify Tenant in writing of the itemized deductions with corresponding receipts (if applicable) Tenant shall within 15 days after notice from Landlord, redeposit with Landlord such amounts so expended so as to maintain the deposit in its original amount. Failure to so redeposit shall be deemed a failure to pay rent under the terms hereof. Nothing herein contained shall limit the liability of Tenant as to any damage to the Leased Premises, and Tenant shall be responsible for the total amount of any damage and/or loss occasioned by actions of Tenant. Landlord may deliver the funds deposited hereunder by Tenant to any purchaser of Landlord's interest in the Leased Premises, whereupon Landlord shall be discharged from any further liability with respect to such deposit. Landlord shall not be required to pay Tenant any interest on said deposit.

5. Utilities/Security and Life Safety/Snow Removal/Trash. Tenant shall be solely responsible for and promptly pay all charges for heat, water, gas, electric, sewer service, telephone, internet, other communications services, trash, backflow/fire sprinklers/fire alarm inspections and monthly monitoring (Security and Life Safety), and snow removal, together with any other utility service used or consumed on the Leased Premises. Tenant shall arrange with the utility company to make direct payment to the utility company for the utilities used on the Leased Premises and to have the same billed to Tenant at the address designated by Tenant. In no event shall Landlord be liable for any interruption or failure in the supply of any utility service to the Leased Premises.

If any utility company supplying service to the Leased Premises determines that an additional service, impact fee, and/or assessment, or any other type of payment or penalty is necessary due to Tenant's use and occupancy of the Building, nature of operation and/or consumption of utilities, said expense shall be borne solely by Tenant. Said expense shall be paid promptly, and any repairs or modifications requested by the utility company shall be performed by Tenant immediately.

6. Use of Leased Premises. Tenant shall use the Leased Premises for general gymnastics facility use and for no other purpose whatsoever except with Landlord's written consent. Tenant shall not allow any accumulation of trash or debris on the Leased Premises or on any other portion of the Building. All receiving and delivery of goods and merchandise and all removal of garbage and refuse shall be made only by way of the rear and/or other service door provided therefor. If the Leased Premises has no such door, these matters shall be handled in a manner satisfactory to Landlord. No material may be stored outside the Leased Premises, unless first approved by Landlord in writing, and then in only such areas as Landlord designates. Tenant shall not commit or suffer any waste on the Leased Premises nor shall Tenant permit any nuisance to be maintained on the Leased Premises or permit any disorderly conduct or other activity having a tendency to annoy or disturb any other occupants of the Building or any adjoining property. Tenant agrees not to install any electrical equipment that overloads any electrical paneling, circuitry or wiring. Furthermore, Tenant shall not do or permit anything to be done in or about the Leased Premises nor bring or keep anything therein which, alone or together with other causes, will in any way increase the existing rate of or affect any fire or other insurance upon the Leased Premises or Building, or cause, in whole or in part, cancellation of any insurance policy covering the Leased Premises or Building.

7. Laws and Regulations. Tenant, at its sole cost and expense, shall comply with all laws and regulations of any governmental entity, board, commission or agency having jurisdiction over the Leased Premises.

8. Parking. All vehicles used by Tenant or Tenant's employees shall be parked only in areas designated by Landlord. Tenant shall ensure that Tenant's employees park only in the areas so designated. If Landlord requests, Tenant shall provide Landlord with the license numbers of Tenant's vehicles and the vehicles of Tenant's employees.

9. Taxes.

9.1 Real Property Taxes and Assessments. Real property taxes and assessment shall be paid by Landlord.

9.2 Personal Property Taxes. If applicable, Tenant shall be responsible for, and shall pay promptly when due, any and all taxes and assessments levied or assessed against any furniture, fixtures, equipment and other personal property on or in the Leased Premises.

9.3 Rent Tax. If a special tax, charge or assessment is imposed or levied upon the rents paid or payable under this Lease or upon the right of Landlord to receive rents (other than to the extent that such rents are included as a part of Landlord's income for the purpose of an income tax), Tenant shall reimburse Landlord for the amount of such tax within 15 days after Landlord gives notice of such tax to Tenant.

10. Insurance.

10.1 Landlord's Insurance. Landlord shall procure and maintain such fire and casualty, loss of rents and liability insurance for the Building as it deems proper and appropriate from time to time. Such insurance shall not cover any of Tenant's property, and Tenant shall have no interest in any of the proceeds of such insurance. Landlord shall not be required to procure any insurance for Tenant's benefit. The cost of Landlord's insurance shall be paid by Landlord.

10.2 Tenant's Insurance. Tenant shall procure, pay for, and maintain comprehensive public liability insurance providing coverage from and against any loss or damage occasioned by any accident or casualty on, about or adjacent to the Leased Premises. Said liability policy shall be written on an "occurrence basis" with limits of not less than \$3,000,000 bodily injury liability coverage and \$1,000,000 property damage liability coverage. Tenant shall also procure, pay for and maintain such property insurance as Tenant considers necessary covering Tenant's leasehold improvements, trade fixtures and other personal property. Certificates for such insurance shall be delivered to Landlord and shall provide that said insurance shall not be changed, modified, reduced or cancelled without 30 days' prior written notice to Landlord. Landlord shall be named as an additional insured on all of Tenant's insurance policies.

10.3 Mutual Subrogation Waiver and Insurer Requirements. Landlord and Tenant grant to each other, on behalf of any insurer providing fire and extended coverage to either of them covering the Leased Premises, Building or other improvements thereon or contents thereof a waiver of any right of subrogation any such insurer of one party may have against the other or as against Landlord or Tenant by virtue of payment of any loss under such insurance. Such a waiver shall be effective so long as Landlord and Tenant are empowered to grant such waiver under the terms of their respective insurance policy or policies, and such waiver shall stand mutually terminated as of the date either Landlord or Tenant gives notice to the other that the power to grant such waiver has been so terminated.

11. Trash Removal. Tenant shall contract and pay for trash removal service for the Leased Premises.

12. Maintenance Obligations of Landlord. Except as otherwise provided in this Lease, Landlord shall maintain, repair and replace the Property and its systems. The cost of such maintenance and repair shall be paid by Landlord unless any maintenance, repair or replacement is necessitated or caused, in whole or in part, by the acts or omissions of Tenant in which case such cost shall be paid by Tenant. Such responsibility shall supersede any responsibility of Landlord in this Lease. Whether or not any portion of the Property or its systems requires maintenance, repair or replacement shall be determined by Landlord in its reasonable discretion. Tenant shall promptly notify Landlord if it becomes aware of any condition that it believes requires Landlord's attention under this Section 13. Landlord shall not be liable to Tenant for any failure to perform any of the foregoing maintenance or repair work, there shall be no abatement of rent and no liability of Landlord by reason of any injury to or interference with Tenant's business arising from any maintenance or repair work called for under this Lease. Tenant waives the right to make repairs at the expense of the Landlord under any law, statute, or ordinance now or hereafter in effect.

Regardless of anything in the foregoing, Tenant will not be responsible for the cost of repairs resulting from normal wear and tear.

13. Condition of Leased Premises. Prior to taking possession, Tenant has had the opportunity to inspect the Leased Premises. Tenant accepts the Leased Premises in its current “as is” condition as of the Lease Commencement Date.

14. Landlord’s Right of Entry and Inspection – Regular, Emergency, Reletting. Landlord, as well as Landlord’s agents and employees, may enter the Leased Premises during regular business hours (or at any hour if an emergency exists) to examine the Leased Premises or to make such repairs, alterations, improvements or additions as Landlord deems necessary. Landlord shall be allowed to take all materials into and upon the Leased Premises that may be required therefor, without constituting an eviction of Tenant in whole or in part, and the rent reserved shall in no way abate while such repairs, alterations, improvements or additions are being made, by reason of loss or interruption of business of Tenant or otherwise. Regardless of the foregoing, if Landlord’s use or repair of the Leased Premises continues for more than ten (10) consecutive days, causes a significant disruption to the Tenants business operations, and if such use or repair arises out of Landlord’s failure to maintain the Leased Premises as required by this Lease, negligence or intentional misconduct of Landlord or its agents, Rent shall be reduced pro-rata based on the portion of the Leased Premises being used or repaired by the Landlord. Landlord may show the Leased Premises to prospective tenants and may place upon the Leased Premises the usual notices indicating that the Leased Premises are for lease or sale.

15. Alterations and Additions. Unless Landlord’s approval is first secured in writing, Tenant shall not install or erect inside partitions, add to existing electric power service, add telephone outlets, add light fixtures, install additional heating and/or air conditioning equipment or fixtures, or make any other alterations to the interior or exterior of the Leased Premises. Any such alterations approved by Landlord shall be made at the sole cost and expense of Tenant. Tenant shall promptly pay for all labor and materials involved in such work; shall not allow any mechanic’s lien to be placed against the Leased Premises or the Building; and shall indemnify Landlord against, and hold Landlord harmless from, all costs and charges for such work. At the end of this Lease, all such fixtures, equipment, additions and/or alterations (except movable equipment installed by Tenant) shall be and remain the property of Landlord; provided however, Landlord shall have the option to require Tenant to remove any or all such fixtures, equipment, additions or alterations and restore the Leased Premises to the condition existing immediately prior to such change or installation, normal wear and tear excepted, all at Tenant’s cost and expense. All such work shall be done in a good and workmanlike manner and shall consist of new materials unless Landlord otherwise agrees. Landlord may require adequate security from Tenant assuring no mechanic’s liens on account of work done on the Leased Premises by Tenant and may post the Leased Premises, or take such other action as is then permitted by law, to protect Landlord and the Leased Premises against mechanic’s liens. Landlord may also require adequate security to assure Landlord that the Leased Premises will be restored to their original condition upon termination of this Lease.

16. Sign Approval. Tenant shall not erect, install or place any sign or other advertising material on or in the vicinity of the Leased Premises without the prior written approval of Landlord. All signs must meet applicable code regulations and be properly permitted. Tenant shall maintain all signage or other advertising material which has been approved by Landlord in good condition and repair. Upon expiration or sooner termination of this Lease, all signage or other advertising material of Tenant must be removed and all damage caused by the removal shall be fully repaired at the expense of Tenant.

17. Damage or Destruction of Leased Premises. If the Leased Premises or the Building are totally destroyed by fire or other casualty or so badly damaged that, in the opinion of Landlord it is not feasible to repair or rebuild same, Landlord shall have the right to terminate this Lease upon written notice to Tenant. Such notice shall be given within 90 days after such fire or other casualty occurs. If the Leased Premises are partially damaged by fire or other casualty, not caused by Tenant's negligence, and are not rendered untenable thereby (as reasonably determined by Landlord), an appropriate reduction of the rent shall be allowed until repairs are substantially completed. Landlord shall undertake and complete such repairs with due diligence. If such repairs are not completed within 150 days after the fire or other casualty, Tenant may terminate this Lease by giving written notice of termination to Landlord within thirty (30) days thereafter.

18. Condemnation. If the entire Leased Premises are taken through condemnation proceedings or otherwise by any governmental entity or other entity having the power of condemnation, this Lease shall terminate as of the date that legal title to the Leased Premises vests in the condemning authority, or the date such authority takes possession of the Leased Premises, whichever is earlier. If only a portion of the Leased Premises is so taken, Landlord may either terminate this Lease as of the date title or possession is transferred as set forth above, whichever is earlier, or continue this Lease in effect, in which event the Base Rent shall be equitably adjusted.

In either a total or partial condemnation, Landlord shall have the exclusive right to any award made by the condemning authority, and Tenant waives and relinquishes any and all claim Tenant may have against such award and all other claims for compensation or damages against Landlord arising from such condemnation.

19. Assignment or Subletting. Tenant may not assign this Lease, or sublet the Leased Premises or any part thereof, without the written consent of Landlord, which may be given or withheld in Landlord's discretion. No such assignment or subletting, if approved by Landlord, shall relieve Tenant of any of its Lease obligations, and the performance or nonperformance of any of the Lease covenants by subtenants shall be considered as the performance or the nonperformance by Tenant.

20. Quiet Possession. Subject to Tenant's compliance with the terms of this Lease, Tenant shall peaceably and quietly have, hold, occupy and enjoy the Leased Premises during the Lease Term.

21. Subordination. Tenant agrees that this Lease shall be subordinate to any deed of trust, mortgage, or ground lease that may now exist or which may hereafter encumber the Leased

Premises and to any and all advances to be made thereunder, and all renewals, replacements and extensions thereof. Tenant shall execute and deliver whatever instruments may be required for the above purposes, and if it fails to do so within 10 days after demand in writing, Tenant makes, constitutes and irrevocably appoints Landlord as its attorney-in-fact in its name, place and stead to do so. In the event of the sale or assignment of Landlord's interest in the Leased Premises to the beneficiary of a deed of trust or mortgage, or in the event of any proceedings brought for the foreclosure of any deed of trust mortgage encumbering the Leased Premises, Tenant shall attorn to the purchaser and recognize such purchaser as Landlord under this Lease.

22. Easements. Landlord shall have the right to grant any easement on, over, under and above the Leased Premises for such purposes as Landlord determines, provided that such easements do not materially interfere with Tenant's use and occupancy of the Leased Premises.

23. Tenant's Hold Harmless and Indemnification Agreement. Tenant shall indemnify and hold Landlord harmless from and against any and all claims, liabilities, losses, expenses, costs, judgments, and/or demands, including court costs and attorneys' fees (a) arising from Tenant's use or occupancy of the Property, (b) arising from any act or omission of Tenant, its agents, contractors, servants, employees, licensees or invitees in or on the Leased Premises, and (c) arising from any Lease breach or default on the part of Tenant.

24. Landlord Indemnity. Landlord shall release, defend, indemnify and hold Tenant, its members, officers and employees harmless from and against any and all claims, liabilities, losses, expenses, costs, judgments, damages and demands (including court costs, expert fees, attorney fees, remediation costs, government fines and penalties) arising out of the grossly negligent or intentional misconduct of Landlord.).

25. Acts or Omission of Others. Landlord, its employees and agents, shall not be responsible or liable to Tenant or to Tenant's guests, invitees, employees, agents or any other person or entity, for any loss or damage that may be caused by the acts or omissions of others including trespassers on or in the Leased Premises, or for any loss or damage caused by or resulting from the bursting, stoppage, backing up or leaking of water, gas, electricity or sewers, or caused in any other manner.

26. Interest on Past Due Obligations. Any amount payable by Tenant to Landlord not paid when due shall bear interest at 18% per annum from due date until paid. Payment of such interest shall not excuse or cure any default by Tenant under this Lease.

27. Late Charge. Tenant shall pay, in addition to any interest on past due obligations, a late charge for any payment due to Landlord which is not paid within 10 days after the due date, said charge being \$50.00 or 5% of said payment, whichever sum is greater.

28. Holding Over – Double Last Month's Rent. If Tenant remains in possession of the Leased Premises after the termination of this Lease, whether by expiration of the Lease Term or otherwise, without a written agreement as to such possession, Tenant shall be deemed a month-to-month tenant. The Base Rent during such holdover tenancy shall be double the Base Rent paid for

the last month of tenancy under this Lease. No holding over by Tenant shall operate to renew or extend this Lease without the written consent of Landlord to such renewal or extension having been first obtained. Tenant shall indemnify Landlord against loss or liability resulting from the delay by Tenant in surrendering possession of the Leased Premises including, without limitation, any claims made with regard to any succeeding occupancy by another tenant.

29. Modification or Extensions. No modification or extension of this Lease shall be binding upon the parties unless in writing and signed by the parties.

30. Status Statement. If Landlord requests, Tenant agrees to execute, acknowledge and deliver to Landlord a statement in writing certifying that this Lease is unmodified and in full force and effect (or if there have been modifications, that the same are in full force and effect as modified and stating the modifications); Tenant has accepted and occupied the Leased Premises; Tenant has not paid rent in advance; Tenant is not aware of any prior assignment of this Lease by Landlord; Tenant has no offsets against the rent or claims against Landlord; amount of the total monthly rent then being paid by Tenant; and, the date to which rent and other charges have been paid.

31. Notice. All notices, demands and requests which may be or are required to be given by either party to the other shall be in writing. Those given to Tenant shall be properly given if personally served on Tenant or an employee of Tenant, posted on the Leased Premises, or mailed to Tenant by United States certified mail, return receipt requested, postage prepaid, addressed to Tenant at the Leased Premises as follows:

Jason Sanchez, Director, Community Recreation & Events
City of Cheyenne
2101 O'Neil Ave., Municipal Bldg., Rm 308
Cheyenne, WY 82001

or at such other place as Tenant may from time to time designate in a written notice to Landlord. Those given to Landlord shall be properly given if personally served on Landlord or if mailed to Landlord via United States certified mail, return receipt requested, postage prepaid, addressed to Landlord at:

GBP, LLC
2020 Caribou Drive, Suite 101
Fort Collins, CO 80525

or at such other place as Landlord may from time to time designate in a written notice to Tenant. Any notice given by personal service shall be effective upon such service or posting. Any notice given by mail shall be effective as of the date of mailing.

32. No Recording of Lease – Notice to Mortgagee. Landlord and Tenant agree not to record this Lease (or a memorandum of this Lease). Tenant consents to Landlord's assignment of rents and of Landlord's interest in this Lease to a secured lender of Landlord. Tenant further agrees, if requested to do so by Landlord, that it will give to said lender a copy of any request for

performance given by Tenant to Landlord or notice of default given by Tenant to Landlord, and if Landlord fails to cure such default, Tenant will give said lender a 60 day period in which to cure the same. Said period shall begin with the last day on which Landlord could cure such default before Tenant has the right to exercise any remedy by reason of such default. All notices to the lender shall be sent by United States certified mail, return receipt requested, postage prepaid.

33. Controlling Law – Venue. This Lease shall be interpreted under Wyoming law. Any dispute resulting in litigation shall be resolved in court proceedings instituted in Cheyenne Wyoming and in no other jurisdiction.

34. Landlord Not a Partner With Tenant. Nothing contained in this Lease shall be deemed to make Landlord a partner, agent, associate of or in joint venture with Tenant in the conduct of Tenant's business. The relationship between the parties is and shall at all times remain solely that of Landlord and Tenant.

35. Partial Invalidity. If any term, covenant or condition of this Lease, or the application thereof to any person or circumstance, shall be ruled invalid or unenforceable to any extent, the remainder of this Lease or the application of such term, covenant or condition to persons and circumstances other than those to which it has been held invalid or unenforceable, shall not be affected thereby, and each term, covenant and condition of this Lease shall be valid and shall be enforced to the fullest extent permitted by law.

36. Default. The occurrence of any one or more of the following events shall constitute a default and breach of this Lease by Tenant:

36.1 The vacating or abandonment of the Leased Premises by Tenant.

36.2 The failure by Tenant to make any payment of rent or any other payment required to be made by Tenant hereunder, within three days after the due date.

36.3 The failure by Tenant to observe or perform any of the covenants, conditions or provisions of this Lease to be observed or performed by the Tenant, other than described in Section 40.1 or 40.2 above, where such failure shall continue for a period of seven days after written notice thereof by Landlord to Tenant; provided, however, that if the nature of Tenant's default is such that more than seven days are reasonably required for its cure, then Tenant shall not be deemed to be in default if Tenant commences such cure within said seven day period and thereafter diligently prosecutes such cure to completion.

37. Default Remedies. In the event of any default or breach by Tenant, Landlord may at any time thereafter, with or without notice or demand and without limiting Landlord in the exercise of a right or remedy which Landlord may have by reason of such default or breach, elect to:

37.1 Terminate Tenant's right to possession of the Leased Premises by any lawful means, in which case this Lease shall terminate and Tenant shall immediately surrender

possession of the Leased Premises to Landlord. In such event Landlord shall be entitled to recover from Tenant all damages incurred by Landlord by reason of Tenant's default including, but not limited to, the cost of recovering possession actually paid; the worth at the time of award by the court having jurisdiction thereof of the amount by which the unpaid rent for the balance of the Lease Term after the time of such award exceeds the amount of such rental loss for the same period that Tenant proves could be reasonably avoided; all costs of re-letting including tenant finish allowances, rent reductions or abatements, and all other incentives; that portion of the leasing commission paid by Landlord and applicable to the unexpired term of this Lease; and any leasing commissions related to reletting the Property. In the event Tenant shall have abandoned the Leased Premises, Landlord shall have the option of (i) taking possession of the Leased Premises and recovering from Tenant the amount specified in this paragraph, or (ii) proceeding under the provisions of the following Section 41.2; or

37.2 Maintain Tenant's right to possession, in which case this Lease shall continue in effect whether or not Tenant shall have abandoned the Leased Premises. In such event Landlord shall be entitled to enforce all of Landlord's rights and remedies under this Lease, including the right to demand the entire amount of rent herein reserved or agreed to be paid for the entire term of this Lease as if the whole rent for the entire term were payable in advance. If any of Tenant's fixtures, furniture, equipment, improvements, additions, alterations or other personal property remain on the Leased Premises after termination or expiration of this Lease, Landlord may either: i) deem the Tenant's property abandoned, dispose of Tenant's property and charge the Tenant for any disposal costs (offset by any sales proceeds received by Landlord which shall not obligate Landlord to seek to sell any property); or ii) charge Tenant for storage fees equal to Rent for a period of up to six (6) months; during such storage period Tenant may remove its property and the storage fees shall cease accruing but at the end of six (6) months Tenant's property shall be deemed abandoned and Landlord may dispose of Tenant's property and charge the Tenant for any disposal costs (offset by any sales proceeds received by Landlord).

In addition to the foregoing remedies, Landlord may pursue any other remedy now or hereafter available to Landlord under Wyoming law.

In the event of any default or breach by Landlord, Tenant shall have all rights and remedies now or hereafter available to Tenant under Wyoming law; provided, however, in no event shall Landlord nor any of its officers, directors, owners or other representatives be liable for any monetary damages and Tenant will look solely to the Landlord's interest in the Leased Premises to satisfy such liability.

38. Administrative Charges. In the event any check, bank draft or negotiable instrument given for any money payment due under this Lease shall be dishonored at any time and from time to time, for any reason whatsoever not attributable to Landlord, Landlord shall be entitled, in addition to any other remedy that may be available (a) to collect from Tenant an administrative charge of \$100.00 or three times the face value of the check, bank draft or negotiable instrument,

whichever is smaller, and (b) at Landlord's sole option, to require Tenant to make all future rental payments by cash or cashier's check.

39. Hazardous Materials and Environmental Considerations.

39.1 As used in this Section, "Hazardous Materials" shall mean (a) any chemical, material, substance or pollutant which poses a hazard to the Leased Premises or the Building, or to persons on or about the Leased Premises, or would cause a violation of or is regulated by any Hazardous Materials Laws, and (b) any chemical, material or substance defined as or included in the definitions of "hazardous substances," "hazardous wastes," "hazardous materials," "extremely hazardous waste," "restricted hazardous waste," "toxic substances," "regulated substances," or words of similar import under any applicable federal, state or local law or under the regulations adopted or publications promulgated pursuant thereto, including, but not limited to, the Comprehensive Environmental Response, Compensation and Liability Act of 1980, as amended 42 U.S.C. Section 9601, et seq.; the Hazardous Materials Transportation Act, as amended 49 U.S.C. Sec. 1801, et seq.; the Resource Conservation and Recovery Act, as amended, 42 U.S.C. Sec. 6901, et seq.; the Solid Waste Disposal Act, 42 U.S.C. Section 6991 et seq.; the Federal Water Pollution Control Act, as amended, 33 U.S.C. Section 1251, et seq.; and Sections 15-15-101, et seq., 25-16-101, et seq., 25-7-101, et seq., and 25-8-101 et seq. of the Wyoming Revised Statutes. "Hazardous Materials Laws" shall mean any federal, state or local laws, ordinances, rules, regulations, or policies (including, but not limited to, those laws specified above) relating to the environment, health and safety or the use, handling, transportation, production, disposal, discharge or storage of Hazardous Materials, or to industrial hygiene or the environmental conditions on, under or about the Leased Premises. Said term shall be deemed to include all such laws as are now in effect or as hereafter amended and all other such laws as may hereafter be enacted or adopted during the term of this Lease.

39.2 Tenant covenants and agrees that Tenant and its agents, employees, contractors and invitees shall comply with all Hazardous Materials Laws. Without limiting the foregoing, Tenant covenants and agrees that it will not use, generate, store or dispose of, nor permit the use, generation, storage or disposal of Hazardous Materials on, under or about the Leased Premises or the Building nor will it transport or permit the transportation of Hazardous Materials to or from the Leased Premises, except in full compliance with any applicable Hazardous Materials Laws. Any Hazardous Materials located on the Leased Premises shall be handled in an appropriately controlled environment which shall include the use of such equipment (at Tenant's expense) as is necessary to meet or exceed standards imposed by any Hazardous Materials Laws and in such a way as not to interfere with any other tenant's use of its premises. Upon breach of any covenant contained herein, Tenant shall, at Tenant's sole expense, cure such breach by taking all action prescribed by any applicable Hazardous Materials Laws or by any governmental authority with jurisdiction over such matters.

39.3 Tenant shall inform Landlord at any time of (i) any Hazardous Materials it intends to use, generate, handle, store or dispose of, on or about or transport from, the

Leased Premises and (ii) of Tenant's discovery of any event or condition which constitutes a violation of any applicable Hazardous Materials Laws. Tenant shall provide to Landlord copies of all communications to or from any governmental authority or any other party relating to Hazardous Materials affecting the Leased Premises.

39.4 Tenant shall indemnify and hold Landlord harmless from any and all claims, judgments, damages, penalties, fines, costs, liabilities, expenses or losses (including, without limitation, diminution on value of the Leased Premises, damages for loss or restriction on use of all or part of the Leased Premises, sums paid in settlement of claims, investigation of site conditions, or any cleanup, removal or restoration work required by any federal, state or local governmental agency, attorneys' fees, consultant fees and expert fees) which arise as a result of or in connection with any breach of the foregoing covenants or any other violation contained herein.

39.5 Upon termination of this Lease and/or vacation of the Leased Premises, Tenant shall properly remove all Hazardous Materials generated, stored or handled by Tenant. Landlord shall grant to Tenant and its agents or contractors such access to the Leased Premises as is necessary to accomplish such removal. Any removal after the Lease Term shall be considered Tenant holding over and Tenant shall pay double last month's rent. If a Phase II environmental audit is conducted, at Landlord's expense, by an independent, duly qualified, third party within six (6) months after the effective date of this Lease, upon termination of this Lease, Landlord may require Tenant, at Tenant's expense, to complete a Phase II environmental audit by a duly qualified firm.

40. Entire Agreement. This Lease sets forth all the promises, agreements, conditions, and understandings between Landlord and/or its agents and Tenant relative to the Leased Premises, and there are no promises, agreements, conditions, or understandings either oral or written, between them other than as set forth in this Lease.

41. Waiver. The waiver by Landlord of any term, covenant or condition shall not be deemed to be a waiver of such term, covenant or condition, or any subsequent breach of the same or any other term, covenant or condition. The subsequent acceptance of rent by Landlord shall not be deemed to be a waiver of any preceding breach by Tenant of any term, covenant or condition of this Lease, other than the failure of the Tenant to pay the particular rental so accepted, regardless of Landlord's knowledge of such preceding breach at the time of the acceptance of such rent.

42. Time of the Essence. Time is of the essence of this Lease.

43. Sale of Leased Premises by Landlord. In the event of any sale of the Leased Premises, Landlord shall be relieved of all liability under this Lease arising out of any act, occurrence or omission occurring after the consummation of such sale; and the purchaser at such sale or any subsequent sale of the Leased Premises shall be deemed, without any further agreement between the parties or their successors in interest or between the parties and any such purchaser, to have assumed and agreed to carry out any and all of the obligations of the Landlord under this Lease.

44. Survival of Terms. To the extent necessary to give them effect, the terms of this Lease shall survive its termination.

45. Miscellaneous. All marginal notations and paragraph headings are for purposes of reference and shall not affect the true meaning and intent of the Lease Terms. Throughout this Lease, wherever the words “Landlord” and “Tenant” are used, they shall include and imply to the singular, plural, persons both male and female, and business entities, and in reading this Lease, the necessary grammatical changes required to make its provisions mean and apply as aforesaid shall be made in the same manner as though originally included in this Lease.

IN WITNESS WHEREOF, the parties hereto have caused this instrument to be executed as of the day and year first above written.

GBP, LLC

By: _____
Alexis Joens, Authorized Agent

CITY OF CHEYENNE

BY:

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk